



Lost Property (Scotland) Act 1965

1965 CHAPTER 27

An Act to extend the application of section 412 of the Burgh Police (Scotland) Act 1892 to landward areas of counties in Scotland and to provide for the sale or disposal of lost and unclaimed perishable articles.

[5th August 1965]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Extension of
section 412
to counties.
1892 c. 55.

1.—(1) Section 412 of the Burgh Police (Scotland) Act 1892 (Goods found to be reported to police office) shall, subject to subsection (2) of this section, apply to the landward areas of counties in Scotland as it applies to burghs, with the substitution for references to the magistrate of references to the justice of the peace court or the sheriff.

(2) The proceeds of the sale of goods or articles in accordance with the provisions of the said section 412 as extended by the foregoing subsection, or if the subject deposited under that section as so extended be money, such money, shall be applied to the county fund for use in connection with police purposes.

Perishable
articles.

2.—(1) Perishable articles deposited with a chief constable or other officer by virtue of the said section 412 or of that section as extended by the foregoing section may, if unclaimed by the owner, be sold or disposed of after the expiration of such period as the chief constable or other officer thinks fit.

(2) Any proceeds of such sale or disposal shall be awarded, delivered or applied in accordance with the said section 412, or

that section as so extended, as if the proceeds were money deposited under that section at the date of the deposit of the articles.

3. Nothing in this Act shall affect the operation, in relation Saving.
to lost property, of any provision which was made by or under
any enactment or any local Act and which was in force at
the passing of this Act.

4.—(1) This Act may be cited as the Lost Property (Scotland) Short title
Act 1965. and extent.

(2) This Act shall extend to Scotland only.